

How to Withdraw a Joint Originating Application or Joint Originating Application for Variation

Instructions

A Withdrawal of Joint Originating Application (F4.04B) notifies the Court and the other person that you are withdrawing from your Joint Originating Application or Joint Originating Application for Variation.

Completing Your Withdrawal of Joint Originating Application

You may fill out this form by hand or online: www.court.nl.ca/supreme/family/forms.html (If you fill out the form online, you must still print the form, file it, and serve it on the other person)

Along with your Withdrawal, you must complete a Response (Form F6.02A) to respond to the family law issues that you disagree with or to make any new claims. You can get a Response form at any Supreme Court location or online: www.court.nl.ca/supreme/family/forms.html

Filing Your Withdrawal of Joint Originating Application

You must file your Withdrawal of Joint Originating Application and Response at the same Court location where the Joint Originating Application or Joint Originating Application for Variation was filed. To file your documents with the Court, you can either bring it to the same Supreme Court location or you can mail it to same Supreme Court location. If you are mailing a document, be sure to attach the filing fee. You can look up the fees online: www.court.nl.ca/supreme/fees.html

You must make 2 extra copies of your completed and signed Withdrawal of Joint Originating Application and file your original Withdrawal of Joint Originating Application with the Court.

You must make 3 extra copies of your completed and signed Response and file your Response with the Court. Your Response must be filed at the same time as your Withdrawal of Joint Originating Application.

Serving Your Withdrawal of Joint Originating Application

You will need to give a copy of the Withdrawal of Joint Originating Application and your Response to the other person. This is called *service*. You can serve the other person by: personal service (an adult, who is not you, can hand-deliver the document), leaving a copy of the with the other person's lawyer, leaving a copy at the other person's address, registered mail/courier, or regular mail. You can also serve the other person using fax, email, or electronic document exchange, if the other person has provided that information.

If you are making claims for divorce or parenting, an adult (who is not you) must hand-deliver the Response to the other person (*personal service*).

More Information

Questions? Go to <https://www.court.nl.ca/supreme/family-division/> or contact a Court near you:

Corner Brook: (709) 637-2227

Grand Falls-Windsor: (709) 292-4260

Gander: (709) 256-1115

Happy Valley-Goose Bay: (709) 896-7892

Grand Bank: (709) 832-1720

St. John's: (709) 729-2258

--- It is highly recommended that you get advice from a lawyer ---

If you need help finding a lawyer, you can contact:

Public Legal Information Association of NL (PLIAN): www.publiclegalinfo.com or 1 (888) 660-7788

Legal Aid: www.legalaid.nl.ca or 1(800) 563-9911

--- REMOVE THIS PAGE BEFORE SERVING THE WITHDRAWAL

Form F4.04B: Withdrawal of Joint Originating Application (Family Law)



**In the Supreme Court of
Newfoundland and Labrador
(General/Family)**

FOR COURT USE ONLY

COURT FILE NO: _____

CENTRAL DIVORCE REGISTRY NO: _____

Filed at _____, Newfoundland and
Labrador, this _____ day of _____, 20____.

Registry Clerk of the Supreme Court of Newfoundland and Labrador

BETWEEN: _____ CO-APPLICANT
(Print full name)

AND: _____ CO-APPLICANT
(Print full name)

AND: _____ ☐ NOT APPLICABLE
(Print full name) ☐ CO-APPLICANT

I, _____, the Co-Applicant, withdraw from the
(Print your name)

Joint Originating Application or Joint Originating Application for Variation, dated _____.
(Date: month/day/year)

DATED at _____, this _____ day of _____, 20____.

Signature

Signature of Lawyer (if any)